

Authority for Personal Data
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The State Secretary of VWS
P.O. Box 20350
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Date

February 20, 2024

Our reference

2024-191

Your letter of

December 21, 2023

Contact person

Your reference

3739235-1059394-DMO

Subject

Law abolishing subscription fee Wmo 2015

Dear Mr. Van Ooijen,

In your letter dated December 21, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR), regarding the draft amendment of the Social Support Act 2015 to enable municipalities to request a personal contribution from clients for more services, which is dependent on their financial capacity (hereinafter: the draft).

On January 24, 2024, the AP received a new version of the draft.¹

You have indicated that the advice can be limited to Article I, part G, and Article I, parts H through P.2

An assessment of the personal data aspects of the draft gives the AP reason to make some comments.

Scope of the draft

Currently, for a large number of services under the Social Support Act 2015 (Wmo 2015), the so-called subscription fee applies as a personal contribution. This is a fixed contribution of €20.60 per month (2024) that is the same for every Wmo client, regardless of income, assets, or the number of hours of required support.

1 Without an adjusted explanatory memorandum.

2 By email dated January 16, 2024.

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Before 2019, there was an income and asset-dependent personal contribution (hereinafter: ivb) for the relevant Wmo services. The government intends to restore this situation as of January 1, 2026, which amounts to abolishing the subscription fee and reintroducing the ivb for tailored services under social support, with the exception of the contribution for sheltered housing and care.

The CAK will implement the ivb. To determine the amount of the contribution for a service, it is necessary for the CAK to conduct an assessment of the client's income and assets and to establish

which household a client belongs to. The necessary data³ for identifying the person and their income and asset information will be provided to the CAK by various agencies.⁴

The draft assigns the CAK the legal task of determining and collecting the ivb⁵ and the authority to process the personal data required for this.⁶ In the case of the shelter for the homeless, the ivb is implemented by the municipality⁷ or the Wmo provider that provides this shelter.⁸

Advice

Health data

Article 5.1.3, first paragraph, provides the CAK and a provider as referred to in Article 2.1.5, fourth paragraph, a basis for processing personal data of the client and their spouse, including health data.

Health data are special personal data as referred to in Article 9 GDPR. Special personal data may not be processed in principle unless one of the exceptions in Article 9, second paragraph, GDPR applies. In the explanatory memorandum of a draft that allows for the processing of special personal data, it must not only be stated that processing such data is necessary, but also which exception is being utilized. Furthermore, it must be indicated which (type of) data is involved.

The explanatory memorandum does not indicate which exception from Article 9, second paragraph, GDPR is considered applicable here. The term "health data" is not concretely defined in the text of the draft or in the explanatory memorandum.¹⁰

3 These data are listed in the explanatory memorandum, pp. 25-26.

4 BRP, UWV, SVB, Tax Authorities, and municipality.

5 Legal bases: Article 5.2.9 Wmo 2015 (BRP), Article 5.7, part b, Decision SUWI (UWV, SVB), Article 5.2.3 Wmo 2015 (Tax Authorities), and Article 5.2.1 Wmo 2015 (municipality).

6 Article 2.1.5, second paragraph, Wmo 2015.

7 Article 2.1.5, third paragraph, Wmo 2015.

8 Article 2.1.5, fourth paragraph, Wmo 2015.

9 Officially, it has been indicated that it concerns the fact that someone needs social support in the sense of the Wmo 2015. Given the possible forms of support, this may sometimes be considered a health-related fact and sometimes not. For example: domestic help or sheltered housing will only be provided to people with a health problem. The fact that someone needs domestic help or sheltered housing could therefore be considered a health-related fact.

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The AP advises to explicitly mention which health data is involved in the legislative text and to indicate in the explanation which exception ground of Article 9, second paragraph, GDPR is applicable.

Technical aspects

The references in Article 5.1.3, first paragraph, are partly inaccurate or incorrect.

In the enumeration of parties from whom data is obtained – by referring to Article 5.2.1 (municipality), 5.2.2 (provider of a customized provision), and 5.2.3 (Tax Authority) – BRP, UWV, and SVB are missing. These latter data providers are mentioned in the explanatory memorandum.¹¹ It is possible that references to the legal provisions regulating these disclosures are also missing in Article 5.1.3, first paragraph.

The reference in Article 5.1.3, first paragraph, to Article 2.1.4 seems incorrect, as Article 2.1.4 pertains to general provisions, for which the personal contribution is determined by the municipality¹² (and thus not by CAK or the "provider").

The reference to Article 5.2.1 should specifically refer to Article 5.2.1, second paragraph under b. The reference to Article 5.2.2 should specifically refer to Article 5.2.2, under b.

The AP advises to amend the wording of Article 5.1.3, first paragraph, Wmo 2015, so that the aforementioned objections are addressed.

Workload AP

It is likely that the draft will require the AP to make limited additional efforts. This effort has not yet been factored into the financing of the AP. This will need to be addressed in consultation with the Minister for Legal Protection - as the responsible party for the budget from which the AP is financed - prior to the entry into force. For that reason, a copy of this advice is sent to the Minister for Legal Protection.

Disclosure

This advice will be published on the AP's website within two weeks.

Yours sincerely,
Authority Personal Data,

Monique Verdier
Vice Chair

as health data. However, the shelter for the homeless will not only be provided to people with a health problem. It may also concern people who have ended up on the street due to debts (email of January 24, 2024).

¹¹ See footnote 4.

¹² Article 2.1.5, first paragraph, Wmo 2015.